

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

Civil Action No. 13-cv-02826-WYD-CBS

ELHAM SALEMI,

Plaintiff,

v.

COLORADO PUBLIC EMPLOYEES' RETIREMENT ASSOCIATION;
TIM MOORE, in his official and individual capacities;
ANGELA SETTER, in her official and individual capacities,

Defendants.

FINAL JUDGMENT

In accordance with the orders filed during the pendency of this case, and pursuant to Fed. R. Civ. P. 58(a), the following Final Judgment is hereby entered.

Pursuant to the Order of Senior Judge Wiley Y. Daniel entered on March 31, 2016, it is hereby

ORDERED that judgment is hereby entered in favor of Defendants, Tim Moore, in his official and individual capacities, and Angela Setter, in her official and individual capacities, and against Plaintiff, Elham Salemi, on Defendants' Motion for Summary Judgment. It is further

ORDERED that Defendants Tim Moore, in his official and individual capacities, and Angela Setter, in her official and individual capacities, are **DISMISSED**.

THIS MATTER came before the Court and a jury of ten duly sworn to try the matter on January 30, 2017 the Honorable Wiley Y. Daniel, Senior United States District Judge, presiding. On February 7, 2017, the jury returned its verdict as follows:

Verdict Form

We, the Jury, being duly impaneled and sworn to try the above-entitled case, unanimously find the following answers to the questions submitted by the Court:

I. DETERMINATION ON LIABILITY

1. Has Plaintiff proven by a preponderance of the evidence that Defendant discriminated against her in her pay in violation of the Equal Pay Act based on Instruction Nos. 15 - 22?

Answer: No

If you have answered "YES" to Question 1, please proceed to Question 2. If you have answered "NO," then you have found for Defendant, and you should sign and date the Verdict Form.

II. DEFENDANT'S AFFIRMATIVE DEFENSES

2. Has Defendant proven by a preponderance of the evidence that the difference in pay between Plaintiff and the male employee(s) who performed substantially equal work was based on a merit system as defined in Instruction 23(a)?

Answer: _____

3. Has Defendant proven by a preponderance of the evidence that the difference in pay between Plaintiff and the male employee(s) who performed substantially equal work was in fact based on any other factor other than sex?

Answer: _____

If you have answered "YES" to Question 2 OR Question 3 then you have found for Defendant, and you should sign and date the Verdict Form. If you have answered "NO," to Question 2 AND Question 3 then proceed to Questions 4 and 5.

II. DETERMINATION OF DAMAGES

4. Do you find that Defendant's conduct in violation of the Equal Pay Act was "willful," as defined in Instruction No. 24?

Answer: _____

If your answer to Question No. 4 is "YES," then you should calculate damages based on the pay Plaintiff should have received from October 16, 2010 through May 10, 2012 and enter them in the blank next to Question No. 5. If your answer to Question No. 4 is "NO," then you should calculate damages based on the pay Plaintiff should have received from October 16, 2011 through May 10, 2012 and enter them in the blank next to Question No. 5.

5. We find that Plaintiff should be awarded damages in the amount of:

\$_____.

IT IS HEREBY

ORDERED that judgment is hereby entered in favor of Defendant, Colorado Public Employees' Retirement Association, and against Plaintiff, Elham Salemi, on Plaintiff's claims under the Equal Pay Act. It is further

ORDERED that Plaintiff's complaint and action are **DISMISSED WITH PREJUDICE**. It is further

ORDERED that Defendants shall have their costs by the filing of a Bill of Costs with the Clerk of this Court within fourteen (14) days of entry of judgment, and pursuant to the procedures set forth in Fed. R. Civ. P. 54(d)(1) and D.C.COLO.LCivR 54.1.

DATED at Denver, Colorado this 8th day of February, 2017.

FOR THE COURT:

JEFFREY P. COLWELL, CLERK

/s/ Robert R. Keech
Robert R. Keech,
Deputy Clerk

APPROVED AS TO FORM:

/s/ Wiley Y. Daniel
WILEY Y. DANIEL,
SENIOR UNITED STATES DISTRICT JUDGE